

HOUSE BILL 2081

By Littleton

AN ACT to amend Tennessee Code Annotated, Title 37;
Title 38; Title 39 and Title 40, relative to abuse of
children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-3-804(a), is amended by adding the following as a new subdivision:

(14) The commissioner of mental health and substance abuse services or the commissioner's designee;

SECTION 2. Tennessee Code Annotated, Section 37-3-804(b)(1)(A), is amended by deleting "subdivisions (a)(1)-(5)" wherever it appears and substituting "subdivisions (a)(1)-(5) and (a)(14)".

SECTION 3. Tennessee Code Annotated, Section 37-3-809, is amended by deleting "child protective teams," and substituting "child protective teams or the provision of services to dependent and neglected youth,".

SECTION 4. Tennessee Code Annotated, Section 37-3-809(1), is amended by deleting "a second or subsequent incident of severe child abuse" and substituting "a case being reviewed by the commission".

SECTION 5. Tennessee Code Annotated, Section 37-3-809(2), is amended by deleting "concerning a second or subsequent incident of severe abuse" and substituting "being reviewed by the commission".

SECTION 6. Tennessee Code Annotated, Section 37-3-809, is amended by designating the existing language as subsection (a) and adding the following subsection (b):

(b) Notwithstanding another law to the contrary, the commission may request and have access to any records held by a state agency that are necessary for performance of the commission's duties and responsibilities under this part.

SECTION 7. Tennessee Code Annotated, Section 37-1-102(b)(28)(A)(i), is amended by deleting "abuse, neglect, or use of force" and substituting "abuse, neglect, use of force, or strangulation, as defined in § 39-13-102(a)(2)".

SECTION 8. Tennessee Code Annotated, Section 39-15-402(a)(3), is amended by deleting "involved the infliction of torture" and substituting "involved strangulation, as defined in § 39-13-102(a)(2), or the infliction of torture".

SECTION 9. Tennessee Code Annotated, Section 39-13-506, is amended by adding the following as a new subsection:

(e) If a law enforcement officer receives a report of a violation of subsection (b) or (c), then the law enforcement officer shall refer the victim to the child advocacy center serving that geographical area for a forensic interview and notify the child protective team, established pursuant to § 37-1-607, of the reported child sexual abuse.

SECTION 10. Sections 1-6 and 9 of this act take effect upon becoming a law, the public welfare requiring it. For all other sections, this act takes effect July 1, 2026, the public welfare requiring it.